

92. Power to make rules in respect of matters in the chapter. – (1)
The Central Government may, by notification, make rules to carry out the purposes of this chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :

- (a) the factors to which the central Government shall have regard under clause (e) of the first proviso to sub-section (1) of sec. 89 ;
- (b) the form and manner in which an application may be made under sub-section (2) of Sec. 89 ;
- (c) the form in which a statement is required to be exhibited under sub-section (3) of sec.89.
- (d) the manner in which the dates of public auction may be notified under sub-section (1) of Sec. 90 ;
- (e) the manner of crediting to the railway administration the price of goods referred to in sub-clause (iii) of Cl. (a) of the proviso to sub-section (3) of Sec. 90.

Comments

Section 92 empowers the Central Government to make rules for the purposes of Chapter X. The matter in respect of which such rules may be made are enumerated in sub-section (2).

Rules - Whether validity framed. – The question whether rules are validly framed to carry out the purposes of the Act can be determined on the analysis of the provisions of the Act.

CHAPTER XI

Responsibilities of Railway Administration as Carriers

93. General responsibilities of a railway administration as carrier of goods.
– Save as otherwise provided in this Act, a railway administration shall be responsible for the loss, destruction, damage or deterioration in transit, or Non-delivery of any consignment, arising from any cause except the following namely.
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- i. act of God ;

- ii. act of War ;
- iii. act of public enemies;
- iv. arrest, restrain or seizure under legal process;
- v. orders or restrictions imposed by the Central Government or a State Government or by an officer or authority subordinate to the Central Government or a State Government authorized by it in this behalf ;
- vi. act or omission or negligence of the consignor or the consignee or the endorsee or the agent or servant of the consignor or the consignee or the endorsee;
- vii. natural deterioration or wastage in bulk or weight due to inherent defect, quality or vice of the goods ;
- viii. latent defects;
- ix. fire, explosion or any unforeseen risk :

Provided that even where such loss, destruction, damage, deterioration or non-delivery is proved to have arisen from any one or more of the aforesaid causes, the railway administration shall not be relieved of its responsibility for the loss, destruction, damage, deterioration or non-delivery unless the railway administration further proves that it has used reasonable foresight and care in the carriage of the goods.

Comments

Section 93 provides that railway administration shall be responsible for the loss, destruction, damage, etc., of any consignment arising from any cause except the causes mentioned therein.

Railway's liability :

The learned counsel for the appellant has argued that if the goods are seized from the possession of the railways, only then this provision can be taken report to by the railways in escaping the liability. This contention raised by the counsel for the appellant has no force as there is no limitation placed in Cl. (d) where the goods were stolen and were soon after recovered and were seized and they remained in legal process. Obviously if any deterioration has taken place in the goods during the period of seizure and legal process, the liability cannot be imposed on the railways.

Limitation :

Right to apply for compensation accrued to the claimant within the meaning of Art. 137 of 1963 Act on the date when open delivery was granted. In the present case, open delivery having been granted on 11th April, 1980, the claim application filed before the Tribunal on 18th May, 1963 was well within the statutory period of three years and two months as two months time is granted for service of statutory notice.

94. Goods to be loaded or delivered at a siding not belonging to a railway administration.- (1) Where goods are required to be loaded at a siding not belonging to a railway administration for carriage by railway the railway administration shall not be responsible for any loss, destruction, damage or deterioration of such goods from whatever cause arising until the wagon containing the goods has been placed at the specified point of interchange of wagons between the siding and the railway administration and railway servant authorized in this behalf has been informed in writing accordingly by the owner of the siding.

(2) Where any consignment is required to be delivered by a railway administration at a siding not belonging to a railway administration, the railway administration shall not be responsible for any loss, destruction, damage or deterioration or non-delivery of such consignment from whatever cause arising after the wagon containing the consignment has been placed at the specified point of interchange of wagons between the railway and the siding and the owner of the siding has been informed in writing accordingly by a railway servant authorized in this behalf.

Comment

Section 94 lays down the responsibility of the railway administration in case of the goods are loaded or delivered at a siding not belonging to railway administration.

95. Delay or retention in transit. – A railway administration shall not be responsible for the loss, destruction, damage or deterioration of a consignment proved by the owner to have been caused by the delay or detention in their carriage if the railway administration proves that the delay or detention arose for reasons beyond its control or without negligence or misconduct on its part or on the part of any of its servants.

Comments

Section 95 lays down that a railway administration shall not be liable for any loss, destruction, etc. for delay or detention in transit for the reasons beyond the control of railway administration or without negligence on its part.